

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Souad Moussawi	Team: Team # 2	CCRB Case #: 201111667	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 09/11/2011 12:00 AM	Location of Incident: Pitkin Avenue and New Jersey Avenue	18 Mo. SOL 3/11/2013	Precinct: 75
Date/Time CV Reported Sun, 09/11/2011 5:22 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 09/11/2011 5:22 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Nicosia	02777	949395	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Nicosia	Abuse: PO Joseph Nicosia threatened to arrest § 87(2)(b)	A . Complaint Withdrawn
B . POM Joseph Nicosia	Abuse: PO Joseph Nicosia refused to provide his name and/or shield number to § 87(2)(b)	B . Complaint Withdrawn

Case Summary

§ 87(2)(b) filed the following complaint with the CCRB via the call-processing system on September 11, 2011. On September 11, 2011, at an unknown time, § 87(2)(b) walked on Pitkin Avenue and New Jersey Avenue in Brooklyn. He was carrying an unopened can of alcohol. PO Joseph Nicosia (name obtained from summons) and three unidentified officers stopped § 87(2)(b). PO Nicosia asked § 87(2)(b) if his can was open. § 87(2)(b) showed it to him and told him that it was not. PO Nicosia asked § 87(2)(b) for his ID. § 87(2)(b) showed PO Nicosia his identification and PO Nicosia issued § 87(2)(b) a summons for an open container. § 87(2)(b) asked PO Nicosia why he was still going to give him a ticket even though the can was not open, and PO Nicosia responded that he would give him a ticket because he could and that if § 87(2)(b) kept talking he would go to jail (Allegation A). PO Nicosia told § 87(2)(b) that he was committing disorderly conduct because he was waving his hands up and down. § 87(2)(b) told PO Nicosia that that was just the way he talked. § 87(2)(b) told PO Nicosia that he was abusing his authority. § 87(2)(b) asked PO Nicosia for his name and badge number; PO § 87(2)(b) refused to supply it and told PO Nicosia that he worked at the 75th Precinct and PO Nicosia could take up his issue with them (Allegation B). § 87(2)(b) walked to the 75th Precinct after the incident.

On September 20, 2011, the undersigned investigator contacted § 87(2)(b) via telephone and § 87(2)(b) withdrew his complaint because he did not want to deal with pursuing it. He was not coerced to withdraw the complaint by a member of the CCRB or the NYPD. He is withdrawing it of his own free will and agreed to sign and return the withdrawal letter. A withdrawal letter was sent to § 87(2)(b) on September 22, 2011. The recorded withdrawal was reviewed by Assistant Supervising Investigator Nina Mickens who ensured that it adhered to agency standards. It is therefore recommended that this complaint be closed as ***Complaint Withdrawn***.

Team: 2

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date